

COMMITTEE ON EDUCATION
SENATE AMENDMENTS TO H.B. 2318
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-424, Arizona Revised Statutes, is amended to
3 read:

4 15-424. Election of governing board members; terms; reduction
5 of membership; statement of contributions and
6 expenditures; term limits

7 A. A regular election shall be held for each school district at the
8 time and place, and in the manner, of general elections as provided in
9 title 16.

10 B. Except as provided in subsection C of this section and sections
11 15-429 and 15-430, the term of office for each member shall be four years
12 from January 1 next following the member's election.

13 C. At the first general election held for a newly formed district,
14 three members shall be elected. The candidate receiving the highest
15 number of votes shall be elected to a four-year term, and the candidates
16 having the second and third highest number of votes shall be elected to
17 two-year terms. A district increasing its governing board to five members
18 shall elect at the next general election members in the following manner:

19 1. If one of the previous three offices is to be filled, the three
20 candidates receiving the highest, the second highest and the third highest
21 number of votes shall be elected to four-year terms.

22 2. If two of the previous three offices are to be filled, the
23 candidates receiving the highest, the second highest and the third highest
24 number of votes shall be elected to four-year terms. The candidate
25 receiving the fourth highest number of votes shall be elected to a
26 two-year term. Thereafter, all such offices shall have four-year terms.

27 D. A member who is serving on a governing board for a district that
28 reduces the number of its governing board members to three pursuant to
29 section 15-425.01 shall continue to serve as a member of the governing

1 board until expiration of the member's current term of office. A district
2 that reduces the number of its governing board members to three pursuant
3 to section 15-425.01 shall reduce the number of its members as follows:

4 1. If two of the previous five offices are expiring at the first
5 general election held after the general election in which a district
6 reduces the number of its governing board members to three pursuant to
7 section 15-425.01:

8 (a) At the first general election held after the general election
9 in which a district reduces the number of its governing board members to
10 three pursuant to section 15-425.01, the candidate receiving the highest
11 number of votes shall be elected to a four-year term.

12 (b) At the second general election held after the general election
13 in which a district reduces the number of its governing board members to
14 three pursuant to section 15-425.01, the candidates receiving the highest
15 and second highest number of votes shall be elected to four-year terms.

16 2. If three of the previous five offices are expiring at the first
17 general election held after the general election in which a district
18 reduces the number of its governing board members to three pursuant to
19 section 15-425.01, the candidate receiving the highest number of votes
20 shall be elected to a four-year term at the election.

21 E. If only one person files a nominating petition or nomination
22 paper for a write-in candidate for an election to fill a district office,
23 the board of supervisors, not earlier than one hundred five days before
24 the election, may cancel the election for the position and appoint the
25 person who filed the nominating petition or nomination paper to fill the
26 position. If no person files a nominating petition or nomination paper
27 for an election to fill a district office, the board of supervisors, not
28 earlier than one hundred five days before the election, may cancel the
29 election for that office and that office is deemed vacant and shall be
30 filled as provided in section 15-302. A person who is appointed pursuant
31 to this subsection is fully vested with the powers and duties of the
32 office as if elected to that office.

33 F. If two or more candidates receive an equal number of votes for
34 the same office, and a higher number than any other candidate for that
35 office, whether on the tally by the school election board or canvass of
36 returns by the board of supervisors, or on recount by a court, the officer
37 or board whose duty it is to declare the result shall determine by lot and
38 in the presence of the candidates which candidate shall be declared
39 elected.

40 G. **THE** position of the names of candidates for each office shall be
41 rotated so that each candidate occupies each position on the ballot an
42 equal number of times, insofar as is possible, for each ballot style. For
43 candidates seeking election to fill a vacancy on the governing board, the
44 ballot shall be designated as provided in section 16-502.

45 H. This section does not require that a school election at which no
46 member is to be elected be held on a general election day.

1 I. All candidates for the office of school district governing board
2 member shall file with the county school superintendent a statement of
3 contributions and expenditures as provided in section 16-926.

4 J. A PERSON IS INELIGIBLE TO BE A CANDIDATE FOR NOMINATION OR
5 ELECTION TO THE OFFICE OF GOVERNING BOARD MEMBER FOR A SCHOOL DISTRICT
6 THAT HAS A STUDENT COUNT OF AT LEAST TWO HUNDRED FIFTY IF ~~[BOTH]~~ [ALL] OF
7 THE FOLLOWING APPLY:

8 1. THE PERSON WILL HAVE SERVED AT LEAST ~~[EIGHT]~~ [TWO] CONSECUTIVE
9 ~~[YEARS]~~ [FOUR-YEAR TERMS OF OFFICE] AS A GOVERNING BOARD MEMBER FOR THE
10 SCHOOL DISTRICT ON THE FIRST DAY OF THE TERM OF OFFICE FOR WHICH THE
11 PERSON SEEKS ELECTION.

12 [2. BOTH COMPLETED TERMS OF OFFICE DESCRIBED IN PARAGRAPH 1 OF THIS
13 SECTION BEGAN FROM AND AFTER NOVEMBER 2026.]

14 ~~[2.]~~ [3.] FEWER THAN FOUR YEARS HAVE PASSED SINCE THE LAST DAY OF
15 THE PERSON'S MOST RECENT TERM OF OFFICE AS A GOVERNING BOARD MEMBER FOR
16 THE SCHOOL DISTRICT.

17 K. A PERSON WHO IS INELIGIBLE TO BE A CANDIDATE FOR NOMINATION OR
18 ELECTION TO THE OFFICE OF GOVERNING BOARD MEMBER PURSUANT TO SUBSECTION J
19 OF THIS SECTION IS ELIGIBLE FOR APPOINTMENT TO FILL A VACANCY ON THE
20 SCHOOL DISTRICT GOVERNING BOARD PURSUANT TO SECTION 15-302, SUBSECTION A,
21 PARAGRAPH 3.

22 ~~<<Sec. 2. Retention of members~~

23 ~~Notwithstanding section 15-424, Arizona Revised Statutes, as amended~~
24 ~~by this act, all persons serving as members of a school district governing~~
25 ~~board on the effective date of this act may continue to serve until the~~
26 ~~expiration of their current terms. Any school district governing board~~
27 ~~member who is a candidate for nomination or election after the effective~~
28 ~~date of this act is subject to the term limits prescribed by statute.>>~~

29 Enroll and engross to conform

30 Amend title to conform

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